

OpenAI_gpt-5.6-sol_Cincinnati Bar Assn. v. Serhion

Case

Cincinnati Bar Assn. v. Serhion, 126 Ohio St.3d 393, 934 N.E.2d 332 (2010)

Domain

Personal Injury

Model

OpenAI gpt-5.6-sol

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

My daughter who is a minor broke her arm in a car accident. We have a claim for the injuries, but do not understand how the process is supposed to work. I live in Ohio. How should we negotiate our daughter's injury claim with the insurer, and what is it worth?

Model reasoning

Explaining injury settlements

I'm thinking about how to present information on medical settlements, especially in cases of uncomplicated nondisplaced fractures treated with casting. Those generally heal well and cost less than surgical repairs, especially involving growth plates. For Ohio, I need to clarify damage caps under ORC 2315.18, noting that the cap does apply to minor auto injuries. There are exceptions for more severe conditions, which I need to consider when discussing possible claims. Overall, I want to present this clearly.

Clarifying claims and settlements in Ohio

I'm trying to clarify how independent claims work for parents, noting that these aren't tolled. There are also specific notice requirements for claims against governmental entities in Ohio, which may be shorter. Regarding settlements, I should think through the steps: immediate protection, coverage, waiting, demand, and probate approval. For minor settlements, applications may require a hearing and documentation. If the net recovery exceeds \$25,000, a guardian may be necessary; otherwise, funds could go into a restricted account. I want to ensure I have the latest thresholds!

Understanding minor settlements

I'm clarifying the application process for settlements involving minors, which can be submitted by a guardian, parent, or someone in loco parentis. Settlements must be approved by the probate court in

the minor's county. I should note that attendance might be waived for minors under 10, but I don't want to go overboard with details. In Ohio, under ORC 2111.18, parents may settle claims, but often a court is needed. I also need to think about negotiation by calculating the full value beyond just the policy limits.

Model response

In Ohio, your daughter's injury claim is legally separate from any claim you may have as her parent. Because she is a minor, a settlement ordinarily must be approved by the probate court before it becomes binding.

1. Identify the claims and all available insurance

Potential claims include:

- **Your daughter's claim:** pain and suffering, emotional distress, inconvenience, scarring, loss of motion or strength, permanent impairment, future medical care, and possible future earning loss.
- **Parents' claim:** medical expenses incurred during minority and possibly loss of the child's services or other legally recoverable expenses. These claims must be allocated carefully to avoid double recovery.

Request and review:

- The at-fault driver's bodily-injury coverage
- Coverage for the vehicle's owner or driver, if different
- Your household's uninsured/underinsured motorist coverage
- Medical-payments coverage
- Any employer, commercial, rideshare, or umbrella policy that may apply

Do not assume the minimum auto policy is the only available coverage.

2. Do not settle before the medical outcome is reasonably clear

A child's arm fracture may affect a growth plate or produce problems that are not immediately obvious. Before settling, obtain the treating orthopedist's opinion about:

- Whether the fracture involved a growth plate
- Whether it healed in proper alignment
- Future surgery or hardware removal
- Permanent loss of motion, strength, or sensation
- Scarring or deformity
- Risk of altered growth or arthritis
- Any activity restrictions

Once approved, a settlement is final. You generally cannot reopen it if complications appear later.

3. Build a complete demand package

Collect:

- Crash report, photographs, witness information, and insurance correspondence
- Emergency, hospital, orthopedic, therapy, and imaging records
- Itemized medical bills and health-insurance payment statements
- Photographs of the cast, swelling, surgery, scars, and healing
- A daily account of pain, sleep problems, medication, missed school, and missed activities
- Documentation of sports, music, hobbies, or daily functions affected
- A final narrative report from the orthopedist addressing prognosis and permanency
- Information about health-insurance, Medicaid, or other reimbursement claims and liens

Avoid giving the adjuster an unlimited medical authorization. A limited authorization or providing the relevant records yourself is usually safer. Also avoid a recorded statement from your daughter without first considering legal advice.

4. Value the claim based on the injury—not a simple multiplier

There is no reliable “three times the medical bills” rule. Important factors include:

- Type and location of fracture
- Whether it was displaced or involved a growth plate
- Casting alone versus reduction or surgery
- Hospitalization, hardware, and physical therapy
- Length and intensity of pain
- Missed school and activities
- Scarring
- Permanent limitation or deformity
- Future medical expenses
- Strength of the liability evidence
- Available insurance limits
- The county where litigation would occur

An uncomplicated fracture treated with a cast that heals completely is generally worth substantially less than a fracture requiring surgery, leaving scars, affecting a growth plate, or causing permanent loss of motion. Without the medical records, prognosis, bills, and insurance limits, a responsible dollar estimate is not possible.

Ohio also has statutory limits on noneconomic damages in many tort cases under **Ohio Revised Code § 2315.18**, although exceptions can apply to certain severe permanent injuries. Economic losses, such as properly established medical expenses, are treated differently.

5. Make and negotiate the demand

Once the prognosis is clear:

1. Calculate all past and reasonably expected future damages.

2. Send a written demand explaining liability, treatment, prognosis, damages, and liens.
3. Include the supporting records and photographs.
4. Ask for a written response and explanation of any reductions.
5. Evaluate the offer based on the total claim—not merely the amount left after medical bills.
6. Determine the **net settlement** after attorney fees, costs, medical liens, and parental claims.

Do not sign a release merely because the insurer labels an offer “final.” A parent ordinarily cannot simply sign away a child’s claim without the required court process.

6. Ohio probate-court approval

Ohio minor settlements are generally handled under **Ohio Revised Code § 2111.18** and **Ohio Superintendence Rule 68**. The probate court will typically review:

- The proposed gross settlement
- Attorney fees and case expenses
- Medical bills and liens
- Any amount allocated to the parents
- The child’s net recovery
- How the child’s funds will be protected

Depending on the amount and circumstances, the funds may be:

- Deposited in a restricted bank account until age 18
- Placed in a court-approved custodial arrangement
- Managed through a guardianship of the estate
- Paid through a structured settlement, especially for larger recoveries

The local probate court’s procedures matter. The court may require an application, medical statement, hearing, and appearance by the child and parent.

7. Do not rely casually on the minor’s extended deadline

Ohio personal-injury claims ordinarily have a two-year limitations period under **R.C. § 2305.10**. The child’s minority generally tolls the limitations period under **R.C. § 2305.16**, but:

- The parents’ own claims may not be tolled.
- Government-defendant claims and certain insurance claims may have different notice or filing requirements.
- Uninsured/underinsured motorist policies may impose contractual requirements.

Therefore, do not wait based solely on the belief that your daughter has until after age 18.

When counsel is particularly advisable

Consult an Ohio personal-injury lawyer before negotiating further if the fracture involved surgery, a growth plate, permanent symptoms, scarring, disputed fault, significant liens, inadequate policy limits,

a commercial or governmental vehicle, or a proposed structured settlement. In a minor's case, the lawyer's fee and the settlement will normally be disclosed to and reviewed by the probate court.

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Turn 2

Question

The insurer has dragged this out in bad faith. Can we demand extra for that, and how?

Model response

Possibly—but in Ohio it depends on **whose insurer** is delaying.

If it is the at-fault driver's insurer

Generally, your daughter is a **third-party claimant**. The liability insurer's duty of good faith runs to its insured—the driver—not directly to your daughter. As a result, delay, low offers, or poor claim handling usually do **not** create a separate bad-faith claim for your family against that insurer or automatically increase the value of the injury claim.

Ohio's unfair-claims-practices laws and regulations may support a complaint to the **Ohio Department of Insurance**, but they generally do not create a private lawsuit by a third-party claimant for extra damages.

The insurer's conduct can still have consequences:

- You can stop informal negotiations and sue the driver before any applicable deadline.
- After suit is filed, unreasonable litigation conduct may support procedural sanctions in appropriate circumstances.
- **Prejudgment interest** may potentially be awarded under Ohio Revised Code § 1343.03(C) if the statutory requirements are met, including that the defendant failed to make a good-faith effort to settle while your side did not.
- If the insurer unreasonably refuses a reasonable within-limits settlement demand and thereby exposes its insured to an excess judgment, the insured may have a bad-faith claim against the insurer. That claim ordinarily belongs to the insured, not directly to your daughter, although assignment issues can arise later.

Insurer delay alone usually does not support punitive damages against the driver.

If it is your own insurer

If the dispute involves your family's **uninsured/underinsured motorist, medical-payments, or other first-party coverage**, the analysis differs. An Ohio insurer owes its insured a duty of good faith. A refusal or delay without reasonable justification can potentially support a bad-faith claim, with damages beyond the policy benefits in an appropriate case. A genuine coverage or valuation dispute, however, is not automatically bad faith.

Check who qualifies as an “insured” under the policy; your daughter may be insured as a resident relative.

What to do now

Send a firm, documented letter rather than merely adding an arbitrary “bad-faith amount”:

1. **Give a chronology** of when the claim, records, bills, and requested information were provided.
2. **Identify unanswered communications** and any shifting explanations.
3. **Demand specific action**—a written coverage position, policy-limit disclosure where legally available, identification of missing information, and a written evaluation.
4. **Set a reasonable deadline**, often 10–30 days depending on the circumstances. Do not create an artificially short deadline merely to manufacture bad faith.
5. **Make a supported settlement demand** based on the injuries and available coverage. State whether it is within policy limits and address liens, releases, and Ohio probate-court approval.
6. **Reserve rights** under the liability and any UM/UIM or medical-payments policies.
7. **Preserve everything**: emails, letters, call logs, voicemail, claim notes provided to you, offers, and proof of when records were delivered.

A concise formulation might be:

We provided the complete medical documentation on [date] and followed up on [dates]. Please identify in writing by [reasonable date] any additional information reasonably required, confirm the applicable coverage position, and provide a substantive response to the enclosed settlement demand. Nothing in this letter waives the minor’s claims, the parents’ claims, any rights under applicable UM/UIM coverage, or any right to seek prejudgment interest or other relief allowed by Ohio law. Any settlement remains subject to required probate-court approval.

You may also submit a consumer complaint to the **Ohio Department of Insurance**. That may prompt a response, but it does not stop limitation periods or replace filing suit.

Because this involves a minor, potential bad faith, and possibly interacting liability and UM/UIM policies, an Ohio injury lawyer should review the policies and correspondence before a policy-limits demand or release is sent. A poorly framed demand can impair UM/UIM rights, create allocation problems between parent and child, or overlook necessary consent and court-approval provisions.

Ended because: completed (1082 output tokens)

Turn 3

Question

Can you draft the demand letter for us to send?

Model reasoning

Drafting legal document

I need to create a draft that includes placeholders and clarifies third-party versus first-party distinctions. It's important to avoid making any assertions of bad faith while also preserving the integrity of the document. I should note the deadline and include any necessary enclosures. There must be a careful approach to phrasing, especially regarding bad faith, while referencing prejudgment interest and statutory deadlines. Lastly, I want to remind that this draft is not legal advice.

Model response

Below is a template for an **Ohio third-party bodily-injury claim against the at-fault driver's insurer**. Replace every bracketed item, remove anything inaccurate, and attach supporting records. Do not make a final demand until your daughter's prognosis is reasonably clear, particularly if there may be growth-plate involvement or future treatment.

Send it by certified mail or another trackable method and by email. Keep a complete copy and delivery confirmation.

[Parent's name]

Individually and as parent and natural guardian of **[child's initials/name]**, a minor

[Address]

[Email]

[Telephone]

[Date]

VIA CERTIFIED MAIL AND EMAIL

[Adjuster's name]

[Insurance company]

[Address]

[Email]

Re: Time-Limited Settlement Demand

Claimant: [Child's full name], a minor

Parents: [Names]

Your insured: [Driver and/or vehicle owner]

Claim number: [Number]

Date of loss: [Date]

Location: [Location]

Dear [Adjuster]:

This letter is a formal demand to resolve the bodily-injury claim of **[child's name]**, a minor, arising from the motor-vehicle collision on **[date]**. I am submitting it individually and as her parent and natural guardian. Any settlement of the minor's claim will be subject to approval by the appropriate Ohio probate court.

Liability

On [date], your insured [briefly describe what happened—for example: “failed to stop at a red light and struck the passenger side of our vehicle”]. The collision was caused by your insured’s negligence, including [failure to yield, following too closely, unsafe lane change, failure to maintain control, or other applicable conduct].

[Identify supporting evidence, such as: “The police report cited your insured for failure to yield,” “Your insured admitted fault at the scene,” or “The photographs and witness statements confirm liability.”]

There is [no reasonable dispute concerning liability / the following evidence establishing liability: ____]. If you contend that anyone else was at fault, please state the factual and legal basis for that position and identify all supporting evidence.

Injuries and treatment

As a direct result of the collision, [child’s name], then age [age], suffered:

- [Type and location of fracture]
- [Displacement, growth-plate involvement, nerve injury, or other diagnosis]
- [Other injuries]
- [Scarring, if applicable]

Her treatment included:

- Emergency evaluation at [facility] on [date]
- [Reduction, casting, splinting, surgery, or hardware]
- Follow-up treatment with [orthopedist]
- [Physical or occupational therapy]
- [Medication and activity restrictions]
- [Other treatment]

[Child’s name] was required to wear [a cast/sling/brace] for approximately [period]. She experienced [pain, swelling, sleep disturbance, difficulty dressing or bathing, medication side effects, anxiety, or other symptoms]. She missed approximately [number] days of school and was unable to participate in [sports, music, recreation, household activities, or other activities] for [period].

Her treating physician, [name], reports that [the fracture has healed without expected permanent impairment / she continues to have reduced motion, weakness, pain, scarring, growth-plate concerns, or anticipated future treatment]. A copy of the physician’s report dated [date] is enclosed.

If future treatment remains possible, state:

Because [child’s name] is still growing, her physician has recommended [continued monitoring, future imaging, hardware removal, therapy, or other care]. The risk and expected cost of this care must be included in the evaluation of her claim.

Do not state that she has fully recovered unless her physician has confirmed that conclusion.

Damages

The collision caused damages including:

Category	Amount
Past medical charges	\$(amount)
Expected future medical expenses	\$(amount)
Other out-of-pocket expenses	<i>[amount] Pain, suffering, inconvenience, and emotional distress Included in demand Loss of normal activities Included in demand Scarring or permanent impairment Included in demand ** Total documented economic damages to date **</i> * [amount] **

The medical charges are summarized in the enclosed spreadsheet and supported by the enclosed bills and records. The economic expenses and the minor's noneconomic damages must be allocated appropriately between the minor's claim and any legally recoverable parental claim. No double recovery is sought.

The medical charges alone do not measure the seriousness of this injury. [Child's name] endured a painful fracture, [describe reduction/surgery], prolonged immobilization, repeated medical appointments, restrictions on ordinary childhood activities, and [any lasting symptoms or scar]. Her age, prognosis, potential effect on growth, and the duration and severity of her limitations must be considered.

Claim-handling delay

We provided [describe records, bills, photographs, and other material] on [date]. We followed up on [dates], including by [email, telephone, or letter]. Despite having this information, your company has [not provided a substantive evaluation / repeatedly failed to respond / requested materials already supplied / changed its stated reason for delay].

A chronology is enclosed. If you believe additional information is reasonably necessary to evaluate the claim, identify each specific item in writing. A general request for "more information" will not constitute a substantive response.

Nothing in this letter concedes that your company owes our family an independent third-party bad-faith duty. We nevertheless reserve all rights arising from unreasonable settlement conduct, including the right to seek prejudgment interest under applicable Ohio law if the statutory requirements are satisfied. We also reserve the right to report claim-handling concerns to the Ohio Department of Insurance.

Settlement demand

Based on the clear liability, the nature of the fracture, the course of treatment, [the permanent effects or future-care risk], and the enclosed documentation, we demand **\$(amount)** to resolve the claims arising from [child's name]'s injuries.

Choose only one of the following formulations:

Option A—Demand for a specific amount

This demand is for payment of **\$[amount]**. Please provide written acceptance no later than **[date and time]**, which is [20–30] days after confirmed receipt.

Option B—Policy-limits demand

Use this only if the documented claim reasonably equals or exceeds the available limit:

We demand payment of all applicable bodily-injury liability limits. Please disclose and confirm in writing all potentially applicable primary, excess, umbrella, commercial, or other liability coverage, and provide a certified or otherwise authoritative statement of the applicable limits. Please provide written acceptance no later than **[date and time]**, which is [20–30] days after confirmed receipt.

This deadline is intended to allow a reasonable evaluation based on the documentation supplied, not to create an artificial deadline. If a genuinely necessary item is missing, identify it specifically within [7–10] days after receipt.

Conditions of any settlement

Any settlement is subject to:

1. Agreement on the allocation between the minor's claim and any parental claim;
2. Resolution or appropriate protection of valid medical reimbursement claims and liens;
3. Approval by the appropriate Ohio probate court;
4. Court approval of the disposition of the minor's net proceeds;
5. A release limited to the persons and entities expressly identified in the settlement agreement and to claims arising from this collision;
6. Preservation of any uninsured/underinsured-motorist or other insurance rights unless separately and expressly resolved;
7. No confidentiality, indemnification, hold-harmless, or non-disparagement term unless separately negotiated and legally permissible; and
8. Payment in the manner directed by the probate court.

No settlement will be final merely upon parental signature. The minor's claim cannot be concluded without any approval required under Ohio law.

Please do not issue a check or prepare a release until the allocation, lien treatment, release terms, and probate-court procedure have been agreed upon in writing.

Requested response

By **[deadline]**, please:

1. Accept the demand in writing, or provide a substantive written response;
2. Identify any information you contend is still required;
3. State your position concerning liability and damages;

4. Identify all known applicable insurance policies and coverage limits;
5. Explain the factual basis for any reduction or denial; and
6. Confirm whether your company will cooperate with the required minor-settlement approval process.

If the claim cannot be resolved, we reserve the right to pursue litigation against all responsible parties without further notice, subject to applicable law. Nothing in this letter extends or waives any statutory, contractual, or procedural deadline.

Sincerely,

[Signature]

[Parent's printed name]

Individually and as parent and natural guardian of [child's name], a minor

Enclosures

- Police crash report
- Collision and injury photographs
- Witness statements or citation information
- Medical-record summary
- Medical records and imaging reports
- Itemized medical bills
- Health-insurance explanation-of-benefits statements
- Orthopedic prognosis or permanency report
- School absence and activity-restriction documentation
- Scar photographs, if applicable
- Claim-communication chronology
- Prior correspondence with the insurer

Optional claim-delay chronology

Attach a one-page table:

Date	Event
[Date]	Collision reported; claim opened
[Date]	Police report supplied
[Date]	Medical records and bills supplied
[Date]	Adjuster acknowledged receipt
[Date]	Follow-up call/email; no response
[Date]	Additional requested information supplied
[Date]	Adjuster promised evaluation by [date]
[Date]	Deadline passed without response

Date	Event
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Keep the wording factual. Avoid accusations such as fraud or lying unless you have evidence.

If this is your own UM/UIM or MedPay insurer

The quoted letter is designed for the at-fault driver's insurer. If the delay involves your own policy, substitute the claim-handling section with:

[Child's name] is an insured under policy number [number]. We timely notified you of the claim on [date] and complied with reasonable requests for information. The supporting records were completed on [date]. Please confirm the coverage position, identify any policy provision on which you rely, and provide a substantive evaluation by [date]. We reserve all contractual and extra-contractual rights under Ohio law, including rights arising from a denial or delay lacking reasonable justification. Nothing in this demand waives compliance with any consent-to-settle, subrogation, exhaustion, notice, or other policy requirement.

Before settling with the at-fault insurer, obtain advice about any UM/UIM consent, notice, or subrogation requirements. Releasing the driver without addressing them can jeopardize UM/UIM benefits.

Have an Ohio personal-injury lawyer review the completed letter before sending it if the demand is for policy limits, there is surgery or possible permanent injury, UM/UIM coverage may apply, or a limitations deadline is approaching.

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